

Remuneration and Facilities of Ministers Act, 1992

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 4

Remuneration and Facilities of Ministers Act, 2049

Lalmohar and Publication Date

2050.02.32

Amending Acts

1. This Act came into force from Jestha 15, 2065. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.01.07
2. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 11 of 2050

Act made to provide for remuneration and facilities of Ministers

Preamble: Whereas it is desirable to make legal provisions regarding the remuneration and facilities of Ministers,

Now, therefore, this Act is made by the Parliament in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Remuneration and Facilities of Ministers Act, 2049".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Minister" means the Prime Minister, Deputy Prime Minister, Minister, Minister of State, and Assistant Minister.

(b) "Prescribed" or "as prescribed" means prescribed or as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. Chapter-2

Remuneration and Other Facilities

3. Remuneration: Amended by the Some Nepal Acts Amendment Act, 2082. (1) The Government of Nepal shall provide remuneration to Ministers as prescribed by publishing a notice in the Nepal Gazette.

(2) The Government of Nepal may, if it deems necessary, by publishing a notice in the Nepal Gazette, change the monthly remuneration of Ministers.

(3) If a Minister dies while holding the office of Minister, or if his resignation submitted is accepted, or if the Council of Ministers is dissolved, or if he ceases to hold the office of Minister in any other manner, he shall be

paid, in addition to the remuneration payable up to the day he remained in the office of Minister, an additional one month's remuneration.

(4) The remuneration or additional remuneration payable under subsection (3) to a Minister shall be paid to him or to the person indicated by him, as the case may be. If the Minister dies and he has not indicated any person, or if the person indicated is not alive, then the amount of such remuneration shall be paid to his nearest heir. 4. Residential facility: (1) The Government of Nepal shall arrange a government house for the residence of Ministers.

In case such a house cannot be arranged, or for Ministers who do not have their own suitable house in the Kathmandu Valley, the amount payable per month as house rent shall be as prescribed by the Government of Nepal. (2) For the repair and maintenance of the compound of the government house arranged under subsection (1), each year Ministers shall be given an amount equal to half of their monthly remuneration. This facility shall also be given even if they reside in a rented house. (3) For a Minister having a permanent residence and a suitable house in the Kathmandu Valley, an amount of one thousand five hundred rupees per month shall be given for the repair and maintenance of the compound of his house. (4) The facility under this section shall be available to Ministers for seven days from the date of expiry of their term of office. 5. Electricity, water supply and telephone facility: The Government of Nepal shall bear the charges (excluding penalties) for electricity, water supply, and telephone made within Nepal installed at the residence of the Prime Minister, and electricity and water supply of one unit and telephone installed at the residences of other Ministers. Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Provided that, for the Prime Minister and Ministers responsible for Foreign Affairs, Home Affairs and Finance, the Government of Nepal may also provide telephone charges incurred abroad for official work as prescribed. 6.

Vehicle and fuel facility: (1) Vehicle and fuel facility as mentioned below shall be provided to the following Ministers:- (a) Prime Minister: (1) Two motor vehicles for conveyance. (2) Three hundred and forty liters of petrol per month. (3) Ten liters of mobil oil per quarter. (b) Deputy Prime Minister: (1) One motor vehicle for conveyance. (2) Two hundred and sixty-five liters of petrol per month. (3) Five liters of mobil oil per quarter. (c) Minister: (1) One motor vehicle for conveyance. (2) Two hundred and thirty liters of petrol per month. (3) Five liters of mobil oil per quarter. (d) Minister of State and Assistant Minister: (1) One motor vehicle for conveyance. (2) Two hundred liters of petrol per month. (3) Five liters of mobil oil per quarter. (2) The maintenance of the motor vehicle and the arrangement of grease required for the motor vehicle shall be made by the Central Services Department. (3) Bill or voucher for petrol and mobil oil need not be submitted. (4) The facility under this section shall be available to Ministers for seven days from the date of expiry of their term of office. Chapter-3 Daily and Travel Allowance 7. Daily and travel allowance: Amended by the Some Nepal Acts Amendment Act, 2082. When Ministers travel within or outside Nepal in the course of official work, they shall be given daily and travel allowance as determined under the prevailing law relating to travel allowance. 8. Other provisions relating to travel: (1) Ministers shall receive half of the daily allowance for the day of return from travel. Such allowance shall be half of the minimum daily allowance that would be receivable for the place where they stayed the previous day before return. (2) For payment of travel allowance, Ministers shall, within thirty-five days from the date of return from travel, fill in the travel bill and provide necessary supporting documents such as treasury certificate, logbook, bills, receipts, etc. 9. Clothing allowance: (1) When Ministers go outside Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for official work or to participate in various ceremonies, festivals, conferences, etc. on behalf of the Government of Nepal, they shall receive as clothing allowance once every three years at the following rates:- (a) Prime Minister Rs. 6,200/- (b) Deputy Prime Minister Rs. 5,700/- (c) Minister Rs.

5,670/- (d) Minister of State Rs. 5,320/- (e) Assistant Minister Rs.

4,320/- (2) When going outside Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.under subsection (1), if a Minister is permitted to take his wife along, the wife shall receive as clothing allowance an amount equal to half of one month's remuneration of the Minister once every three years. 10. Leader allowance: When Ministers go abroad as leaders, they shall receive an additional fifty percent of the daily allowance receivable by them as leader allowance. 11. Insurance facility: When Ministers travel, an amount necessary for travel insurance of three hundred thousand rupees and the amount required for air travel tax shall be given to them. 12. Medical treatment facility: (1) The service of a doctor prescribed by the Government of Nepal shall be made available to Ministers collectively. (2) If a Minister, recommended by the doctor prescribed under subsection (1) as needing to be admitted to hospital for medical treatment, is admitted to hospital and receives medical treatment, the entire expenses as per the prescription and bills incurred for such treatment shall be borne by the Government of Nepal. (3) If Ministers have to go abroad for medical treatment, they shall receive the treatment expenses prescribed by the Government of Nepal. Chapter-4 Miscellaneous 13. Arrangement of Private Secretariat: (1) The arrangement of furniture, office supplies, and staff necessary for the Private Secretariat of Ministers for the duration of their term of office shall be as prescribed. (2) The furniture and permanent non-consumable items prescribed under subsection (1) shall be returned by Ministers after the expiry of their term of office. 14. Stationery and hospitality expenses: The amount for stationery and hospitality expenses required for the Private Secretariat of Ministers shall be as prescribed. Bills or receipts for such stationery and hospitality expenses need not be submitted. 15. Facility of bodyguards and guards: The facility of bodyguards and guards required for Ministers shall be as prescribed. 16. Commencement of facility: (1) The facilities receivable under this Act shall be received by Ministers from the date of taking oath of office of Minister. (2) Notwithstanding anything contained in subsection (1), Ministers may also claim the amount of daily and travel allowance incurred while coming to Kathmandu from outside the Kathmandu Valley for the purpose of taking the oath of office of Minister. 17.